



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 8407

1. Hooker Chemicals & Plastics Corporation, Niagara Falls, New York is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to transport packages prescribed herein of various waste corrosive materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation, within plant over public highway, various waste residues, classed as corrosives liquids, n.o.s., without shipping papers, in non-DOT specification portable tanks, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Hooker Chemicals & Plastics Corporation's application dated April 11, 1980, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Various waste residues, classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Corrosive liquid, n.o.s.

REGULATION AFFECTED. 49 CFR Part 172, Subpart C; 173.245.

MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURE. Packaging prescribed is non-DOT specification portable tanks, of 200- and 250-gallon capacity, constructed of fiberglass reinforced "Derakane 470", with a veil of dnyel on the interior surface. Tanks must be equipped with a vent that is kept open (to assure absence of pressure or vacuum); or fitted with an absorber cartridge (to minimize fuming or odor). Tanks, vent, filter, and steel skid base (with valve guard) - which is to permit handling and transportation by fork-lift truck - must be fabricated in accordance with Drawing No. A-54425, included in petitioner's application.

8. SPECIAL PROVISIONS.

a. Packagings prescribed above are for the movement of those commodities listed in paragraph 3 within Hooker Chemical's Niagara Falls, New York plant, and for a distance of only about 60 feet across a public highway (Buffalo Avenue) which runs through the plant site between two plant gates. Transportation is via fork-lift truck.

b. No shipping papers required.

c. Packages must be transported by Hooker Chemicals & Plastics Corporation employees and company-owned vehicles.

d. Tanks must be placarded in accordance with 49 CFR 172.504 and 172.514.

REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. September 30, 1982.



Alan I. Roberts  
Associate Director for  
Hazardous Materials Regulation  
Materials Transportation Bureau

19 DEC 1980

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA